Summary: Legality of the Threat or Use of Nuclear Weapons

International Court of Justice, Advisory Opinion of 8 July 1996, *I.C.J. Reports 1996*, p. 226 (requested by the UN General Assembly)

In one paragraph. The UN General Assembly asked: "*Is the threat or use of nuclear weapons in any circumstance permitted under international law?*" The ICJ found that international law contains **neither a specific authorization nor a comprehensive and universal prohibition** of nuclear weapons as such. Their threat or use must comply with the **UN Charter** (Arts. 2(4) and 51) and with **IHL** – above all the "cardinal principles" of **distinction** and the prohibition of **unnecessary suffering**, which apply to "all kinds of weapons, those of the past, those of the present and those of the future". It concluded that their use "**would generally be contrary**" to IHL, but – by the President's **casting vote** (7–7) – that it **could not conclude definitively** whether use would be lawful or unlawful "in an **extreme circumstance of self-defence**, in which the very survival of a State would be at stake". Unanimously, it found an **obligation to pursue and conclude negotiations on nuclear disarmament**.

1. The request and the Court's jurisdiction (paras. 1–19)

- **Request**: General Assembly resolution 49/75 K (15 December 1994). Many states made written and oral statements (1995).
- **Jurisdiction**: the GA may request opinions on "any legal question" (UN Charter Art. 96(1)); the question is legal, even if it has political aspects and is abstract. Political motives behind the request are irrelevant.
- **Discretion**: the Court should decline only for "compelling reasons". Arguments that an answer could harm disarmament negotiations, or that the Court would be legislating, were rejected: the Court states existing law and does not legislate, even if it must sometimes note its general trend. Decided **13–1** (Judge Oda against) to give the opinion. *(The same day, the Court declined a similar request from the WHO because it fell outside that organization's competence.)*
- **The word "permitted"**: some states said it wrongly assumes weapons need authorization. The Court said it would answer whether threat or use is **lawful or unlawful**; states do not need authorization – prohibitions are formulated as such (para. 52).

2. The applicable law (paras. 20–36)

- **Human rights – right to life (para. 25)**: the ICCPR "does not cease in times of war", except through derogation, and the right to life is non-derogable. But whether a killing is an "**arbitrary**" deprivation of life in hostilities is determined by the **lex specialis** – the law applicable in armed conflict. *This is the famous statement on the relationship between IHRL and IHL.*
- **Genocide (para. 26)**: use would be genocide only if accompanied by the specific **intent** to destroy a protected group – to be assessed case by case.
- **Environment (paras. 27–33)**: environmental treaties were not intended as obligations of "total restraint" in armed conflict and do not deprive states of self-defence. But "States must take **environmental considerations** into account when assessing what is **necessary and proportionate**" (para. 30). AP I Arts. 35(3) and 55 (no widespread, long-term and severe damage) are "powerful constraints" for states party to them (para. 31). The environment "is not an abstraction but represents the living space … and the very health of human beings, including generations unborn" (para. 29).
- **Most relevant law (para. 34)**: the **UN Charter** law on the use of force, the **law of armed conflict** regulating the conduct of hostilities, and any specific nuclear treaties.

- **Unique characteristics (paras. 35–36)**: immense heat and energy plus **powerful and prolonged radiation**; their destructive power "cannot be contained in either space or time"; they could destroy all civilization and the ecosystem and harm future generations (genetic defects, illness). These features must be taken into account in applying the law.

3. The UN Charter – jus ad bellum (paras. 37–50)

- Arts. 2(4), 42 and 51 **do not refer to specific weapons**; they apply to any use of force regardless of the weapon. The Charter neither expressly prohibits nor permits nuclear weapons (para. 39).
- **Self-defence** (Art. 51) is subject to **necessity and proportionality** (customary law, *Nicaragua*). Proportionality may not in itself exclude nuclear use in all cases, but a use of force proportionate under *jus ad bellum* **must also comply with IHL** (para. 42). The risk of escalation is a further consideration for states (para. 43). Self-defence must be reported to the Security Council (para. 44).
- **Reprisals (para. 46)**: armed reprisals in peacetime are unlawful; belligerent reprisals, if any, are also governed by proportionality.
- **Threat and deterrence (paras. 47–48)**: "threat" and "use" stand together – if a use of force would be illegal, **threatening** it is illegal too. **Possession** may imply readiness to use; whether deterrence is an unlawful threat depends on whether the envisaged use would itself violate the Charter (e.g. necessity and proportionality).

4. Specific rules on nuclear weapons – treaty law (paras. 51–63)

- No rule **authorizes** nuclear weapons, and none makes legality depend on authorization: state practice prohibits weapons by **express prohibition** (para. 52).
- **Not "poison"**: the 1899 Hague Declaration, Art. 23(a) HR ("poison or poisoned weapons") and the 1925 Geneva Gas Protocol cover weapons whose **prime, or even exclusive, effect is to poison or asphyxiate**; states have not treated them as covering nuclear weapons (paras. 54–56).
- **Weapons of mass destruction**: biological and chemical weapons were banned by **specific treaties** (BWC 1972, CWC 1993); no such treaty existed for nuclear weapons (para. 57).
- **Nuclear treaties** – Tlatelolco, Rarotonga, the NPT (extended indefinitely in 1995), Security Council resolution 984 (1995) and the 1995 security assurances, the Bangkok and Pelindaba zones – show "growing awareness" of the danger and point to a future prohibition, but do **not amount to a comprehensive and universal prohibition** (paras. 58–63).

5. Customary international law (paras. 64–73)

- States arguing illegality relied on **non-use since 1945**; others pointed to **deterrence** – non-use was because circumstances never justified use, not because of a legal conviction. The Court did not find a sufficient opinio juris (paras. 65–67).
- **General Assembly resolutions** (from res. 1653 (XVI) of 1961) can have "**normative value**" and evidence opinio juris, depending on content and adoption conditions (para. 70). But these were adopted with many negative votes and abstentions, so they "fall short" of establishing opinio juris on illegality (para. 71).
- The emergence of a specific customary prohibition is "hampered by the continuing tensions between the **nascent opinio juris** on the one hand, and the still strong adherence to the **practice of deterrence** on the other" (para. 73).

6. International humanitarian law and neutrality (paras. 74–97)

The development of IHL

- **Hague law** (methods and means; 1868 St Petersburg Declaration, 1899/1907 Hague Conventions) and **Geneva law** (protection of victims) have merged into "one single complex system, known today as international humanitarian law" (para. 75).
- Specific bans followed new weapons: explosive projectiles under 400g, dum-dum bullets, asphyxiating gases, chemical and bacteriological weapons, and the 1980 CCW (non-detectable fragments, mines and booby traps, incendiary weapons) (para. 76).
- "The right of belligerents to adopt means of injuring the enemy is **not unlimited**" (Art. 22 HR); weapons "calculated to cause unnecessary suffering" are prohibited (Art. 23(e) HR) (para. 77).

The cardinal principles (para. 78)

1. **Distinction**: protection of the civilian population and civilian objects. "States must **never make civilians the object of attack** and must consequently **never use weapons that are incapable of distinguishing** between civilian and military targets."
2. **Prohibition of unnecessary suffering** to combatants: weapons causing "a harm greater than that unavoidable to achieve legitimate military objectives" are prohibited; states "do not have unlimited freedom of choice of means".

- The **Martens Clause** (1899; AP I Art. 1(2)) – "an effective means of addressing the rapid evolution of military technology": in cases not covered by treaties, people remain protected by "the principles of humanity and … the dictates of public conscience".
- If a use of weapons would violate IHL, **a threat to use them would also be contrary to IHL** (para. 78).

The status of these rules (paras. 79–84)

- Many IHL rules are so fundamental to "**elementary considerations of humanity**" (*Corfu Channel*) that they bind all states whether or not they ratified the treaties, "because they constitute **intransgressible principles of international customary law**" (para. 79). The Hague Regulations were already declaratory of custom (Nuremberg, para. 80), and so are the GCs (UN Secretary-General's report on the ICTY, para. 81).
- The Court did **not decide** whether these rules are *jus cogens* (para. 83).
- **AP I**: no specific solution on nuclear weapons was adopted in 1977, but AP I did not replace the customary rules applicable to all means and methods; its rules that codify pre-existing custom (e.g. the Martens Clause) bind all states (para. 84).

Applicability to nuclear weapons (paras. 85–89)

- Although nuclear weapons were invented after most IHL rules and were left aside in 1949 and 1977, IHL applies to them. Excluding them would be incompatible with the "intrinsically humanitarian character" of the law, which "applies to **all forms of warfare and to all kinds of weapons, those of the past, those of the present and those of the future**" (para. 86). Even the nuclear powers (US, UK, Russia) accepted this.
- The **principle of neutrality** also applies, whatever its content (paras. 88–89).

Consequences for legality (paras. 90–97)

- **View 1** (e.g. UK, US): IHL regulates but does not necessarily prohibit; a **low-yield** weapon against warships on the high seas or troops in sparsely populated areas might cause few civilian casualties (para. 91).
- **View 2**: nuclear weapons can **never** distinguish between civilians and combatants; their effects cannot be limited in time or space; so they are inherently illegal under the principle of humanity, and under

neutrality because their effects cannot be contained (paras. 92–93).

- The Court: no state explained the precise circumstances that would justify "clean" limited use, or whether it would escalate (para. 94). Use "**seems scarcely reconcilable**" with IHL's requirements, but the Court lacks "sufficient elements" to conclude it would be unlawful **in any circumstance** (para. 95).
- It "cannot lose sight of the **fundamental right of every State to survival**", of the policy of **deterrence**, and of reservations by nuclear states to negative security assurances (para. 96). Hence it "cannot reach a definitive conclusion" on use "in an extreme circumstance of self-defence, in which its very survival would be at stake" (para. 97).

7. Obligation of nuclear disarmament (paras. 98–103)

- The continuing difference of views on the legal status of such deadly weapons harms international law and order; complete nuclear disarmament is the best solution (para. 98).
- **Art. VI NPT** contains an obligation not just of conduct but to **achieve a precise result** – nuclear disarmament in all its aspects – by pursuing negotiations in good faith (para. 99). It is a **twofold obligation**: to pursue **and to conclude** negotiations, concerning all states (paras. 100–103).

8. The operative part (dispositif, para. 105)

	Finding	Vote
(1)	The Court decides to comply with the request	13–1
2A	No specific authorization of the threat or use of nuclear weapons in customary or treaty law	Unanimous
2B	No comprehensive and universal prohibition of the threat or use of nuclear weapons as such	11–3
2C	Threat or use contrary to Art. 2(4) UN Charter and failing to meet all the requirements of Art. 51 is unlawful	Unanimous
2D	Threat or use must also comply with the law of armed conflict, particularly IHL, and with specific nuclear treaties and undertakings	Unanimous
2E	Threat or use "would **generally** be contrary" to IHL; **however**, the Court cannot conclude definitively whether it would be lawful or unlawful in an extreme circumstance of self-defence in which the very survival of a State would be at stake	7–7, President Bedjaoui's casting vote
2F	Obligation to pursue in good faith and bring to a conclusion negotiations leading to nuclear disarmament in all its aspects under strict and effective international control	Unanimous

- **Separate and dissenting opinions** show the deep division. Paragraph 2E was opposed from both directions: judges **Shahabuddeen, Weeramantry and Koroma** dissented because they considered use **always unlawful**; judges **Schwebel, Higgins and Guillaume** objected that the Court should not have declared a **non liquet** (no answer) – the law, applied properly, should give an answer. President Bedjaoui's declaration stressed that the Court's inability to decide must not be read as a door left open to legality.
- *Later development (not in the opinion)*: the **Treaty on the Prohibition of Nuclear Weapons** (2017; in force 2021) now prohibits nuclear weapons for its parties, but no nuclear-armed state has joined it.

Key takeaways

- There is **no specific authorization** and **no comprehensive prohibition** of nuclear weapons as such – legality depends on the **general** rules of the Charter and IHL.
- **Jus ad bellum and jus in bello apply cumulatively**: a use of force lawful in self-defence must **also** respect IHL; and a **threat** to use force is unlawful whenever the use itself would be.
- **Cardinal principles of IHL**: **distinction** (never attack civilians; never use weapons incapable of distinguishing) and the prohibition of **unnecessary suffering** – plus the **Martens Clause**.
- IHL applies to "**all kinds of weapons, those of the past, those of the present and those of the future**" – new technology does not escape existing law.
- Core IHL rules are "**intransgressible principles of international customary law**", binding all states regardless of ratification.
- **IHRL continues in armed conflict**, but "arbitrary" deprivation of life is judged by IHL as **lex specialis** (para. 25).
- **Environmental considerations** are part of assessing necessity and proportionality (para. 30).
- Use of nuclear weapons "**would generally be contrary**" to IHL, but the Court gave a **non liquet** on extreme self-defence for state survival – a highly controversial 7–7 finding.
- GA resolutions can evidence **opinio juris**, but not when adopted against strong opposition; persistent **deterrence** practice blocked a customary ban.
- There is a binding obligation to **pursue and conclude** nuclear disarmament negotiations (Art. VI NPT).

Why this opinion is relevant to this week's topic

Conduct of hostilities

- It is the leading judicial statement of the **principles of the conduct of hostilities**: distinction, the prohibition of indiscriminate attacks and weapons, and the prohibition of unnecessary suffering – later restated in AP I Arts. 48, 51 and 35 and CIHL Rules 1, 11–12 and 70–71.
- It confirms that these principles are **customary and universally binding** ("intransgressible"), important because several military powers are not party to AP I.
- It links conduct of hostilities to **proportionality and necessity**, including **environmental harm** as a factor in the proportionality assessment.
- It addresses the relationship between **jus ad bellum and jus in bello**: self-defence does not justify breaches of IHL – the two bodies of law apply cumulatively and independently. But paragraph 2E's reference to "survival of a State" has been criticized for **blurring this separation**.
- Its statement on **IHL as lex specialis** to the right to life (para. 25) frames how killings in hostilities are assessed – e.g. in targeting debates.

Means and methods of warfare

- It is the key case on **weapons law**: it explains when a weapon is unlawful **per se** (incapable of distinguishing; causing superfluous injury or unnecessary suffering) versus when its **use** is unlawful in particular circumstances.
- It shows how weapons are banned in practice: by **specific treaties** (poison, gas, BWC, CWC, CCW) – and it gives a narrow reading of "**poison**" (prime or exclusive effect).
- Its statement that IHL applies to weapons "**of the future**", together with the **Martens Clause**, is the foundation for regulating **new technologies**: cyber operations, drones, autonomous weapons and AI-enabled targeting; and for the duty to review new weapons (**AP I Art. 36**).
- It illustrates the **"threat" of a method**: if use would violate IHL, threatening it also does – relevant to deterrence and to declarations of "no quarter" (AP I Art. 40).

- Paragraph 2E and the opinions show the tension between **military necessity and humanity** at the heart of the law of means and methods.

Unorthodox armed actors

- *The opinion is **state-centred** and does not discuss non-state actors directly; its relevance here is mainly indirect.*
- Because the cardinal principles are **customary and "intransgressible"**, they also form the basis of obligations for **organized armed groups** in NIACs, which are bound by customary IHL – including the prohibition of indiscriminate weapons and unnecessary suffering (CIHL Rules 70–71 apply in NIACs).
- The "**survival of a State**" reasoning cannot be invoked by non-state actors such as armed groups or private military companies – it highlights how the law on means and methods was built around states, a gap when weapons (drones, IEDs, potentially weapons of mass destruction) spread to non-state actors.
- The risk of **nuclear and other WMD falling into the hands of non-state actors** (later addressed by Security Council resolution 1540 (2004), outside this opinion) shows the limits of a state-based, deterrence-driven framework: deterrence does not work against actors without territory to protect.
- Its emphasis on applying old principles to **new situations** supports applying IHL to new kinds of actors as well – e.g. cyber groups, contractors operating weapons systems, and other participants who do not fit the classic combatant model.